9.	**NEW MEI AO INC. VS. DOE 1** **2026-01582312**	**ORDER TO SHOW CAUSE RE: PRELIMINARY INJUCTION** The Court WILL ENTER the preliminary injunction against defendant JPMorgan Chase Bank that enjoins and restrains it and its agents, employees, representatives, etc., from spending, transferring, encumbering, selling, or otherwise disposing of any part of the misappropriated loan funds identified in the order and in plaintiff's ex parte application. The Court has ordered Defendants John Doe 1 and JPMorgan Chase Bank to appear and show cause why a preliminary injunction should not issue pending trial or further order in this case that enjoins and restrains them and their agents, employees, representatives, etc., from spending, transferring, encumbering, selling, or otherwise disposing of any part of the misappropriated loan funds identified in the order and in plaintiff's ex parte application. Plaintiff does not know the true identity of Defendant John Doe 1, who allegedly posed as someone else to obtain large refinancing loan from plaintiff secured by a fraudulent deed of trust. As a result, Plaintiff has not served the summons and complaint or the OSC on Defendant John Doe 1, and the Court does not yet have personal jurisdiction over him. Plaintiff has, however, served the summons and complaint on defendant JPMorgan Chase Bank and has made a general appearance in the action through its counsel. Plaintiff has not alleged any wrongdoing on the part of this defendant; it simply is the depository institution where defendant John Doe 1 has accounts and deposited the loan proceeds. Plaintiff personally served the OSC on defendant JPMorgan Chase Bank as directed by the Court and it has not filed any opposition in response to the OSC. A preliminary injunction is an order that is sought by a plaintiff prior to a full adjudication of the merits of its claim. (*Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731). To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits. (*Ibid).* Trial courts evaluate two interrelated factors when deciding whether or not to issue a preliminary injunction. (*Amgen Inc. v. Health Care Services, supra*, 47 Cal.App.5th at p. 731). The first is the likelihood that the plaintiff will prevail on the merits at trial. (*Ibid)*. The second is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. (*Ibid)*. Here, plaintiff's complaint (ROA 2) contains four causes of action for conversion, unjust enrichment, money had and received, and declaratory relief. As noted above, plaintiff alleges that defendant John Doe 1 posed as someone else to obtain a large loan from

		plaintiff and secured it with a fraudulent deed of trust and deposited the funds into an account with co-defendant JPMorgan Chase Bank. Plaintiff also alleges that the real owner of the property encumbered by the fraudulent deed of trust has contacted it to indicate that the deed of trust is void. Plaintiff has submitted evidence, consisting of the declaration of its CEO and CFO and several exhibits to support its claims. The exhibits include copies of the promissory note executed by defendant John Doe 1 (using the name of the owner of the real property) (Exhibit 2), two checks for payment of interest on the loan drawn on an account with Defendant JPMorgan Chase Bank and signed by Defendant John Doe 1 (using the name of someone else) (Exhibit 3), and a demand letter from an attorney representing the true owner of the real property encumbered by the fraudulent deed of trust and a draft complaint against plaintiff. (Exhibit 3.) Plaintiff has shown that its allegations have merit against defendant John Doe 1 and that it will probably prevail on its causes of action. Plaintiff has also shown that the funds are most likely in a checking account with Co-Defendant JPMorgan Chase Bank. Thus, the balance of the equities favor Plaintiff, and the injunction should be issued to Defendant JPMorgan Chase Bank. Plaintiff has asked that the Court waive the posting of a bond. However, a bond is generally required for a preliminary injunction but may be waived under circumstances where the parties stipulate to the injunction. (*Greenly v Cooper* (1978) 77 Cal.App.3d 382, 385). Indeed, under subdivision (a) of Code Civ. Proc. § 529, "[o]n granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction." The Court will take oral argument regarding the amount of the bond to be posted by Plaintiff.
11.	**SEDANO VS. ALL AMERICAN GENERAL BUILDING CONTRACTOR INC. 2024-01418397**	**MOTION TO TAX COSTS** The Motion to Strike or Tax Costs by Defendant All American General Building Contractor, Inc. dba Great American Home Remodel is CONTINUED to 8/25/26, to be heard concurrently with Plaintiff's motion for attorney fees. The Court must decide the attorney fee motion first in order to determine whether Plaintiff is entitled to expert witness fees as costs. Code Civ. Proc. § 998.)